



Clerk of the Circuit Court and County Comptroller
St. Johns County, Florida

Seal and/or Expunge Procedure

General Information

Guidelines

Forms

Criminal Division

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General Information:

Read this thoroughly before taking any steps to file the seal or expunge forms or represent yourself in court. This is not intended as a substitute for legal advice from an attorney. Each case has its own circumstances, and an attorney may advise you of what is best for you in your situation. If you have questions or concerns regarding these forms, commentary, instructions, appendices, the use of these forms, or your legal rights, it is strongly recommended that you talk to an attorney. If you do not know an attorney, you may call the Florida Bar Lawyer Referral Service at 1-800-342-8011.

All instructions and forms distributed by the Clerk of Court are provided as a public service to persons seeking to represent themselves in court without the assistance of an attorney. These documents are meant to serve as a guide only and to assist pro se (self-represented) litigants with their cases. Any person using these instructions and/or forms does so at their own risk, and the Clerk of Court shall not be responsible for any loss incurred by a person in reliance on the instructions and/or forms.

Notice of Limitation of Services Provided:

The personnel in this office are not acting as your lawyer, are not providing legal advice, and are not acting on behalf of the court or judge. The judge is not required to grant the relief requested. The personnel in this office cannot tell you what your legal rights or remedies are.

St. Johns County Legal Aid

222 San Marco Avenue
St. Augustine, FL 32084
(904) 827-9921
Toll Free: (877) 827-9921
Hours: 8:30 a.m. – 5 p.m., Monday – Friday

FDLE Website: www.fdle.state.fl.us/seal-and-expunge-process

The following information is provided on the Florida Department of Law Enforcement's Seal and Expunge page including additional frequently asked questions not contained within this document.

-What is the difference between a sealed record and an expunged record?

When a criminal history record is sealed or expunged, the public will not have access to it. Certain governmental or related entities, primarily those listed in [Section 943.059\(4\)\(a\)](#), F.S., have access to the sealed record information in its entirety. When a record has been expunged, most of the entities which would have access to a sealed record will be informed that the subject of the record has had a record expunged but would not have access to the record itself without a court order. The response to a record search query from such an entity would be: "Criminal History Record Expunged Pursuant to Florida Statutes 943."

-How many dates of arrest can I have sealed or expunged?

The eligibility criteria for sealing or expungement include the requirement that the applicant be able to attest that he/she has never previously had a record sealed or expunged, under [Section 943.059](#), [Section 943.0585](#), or previous versions of those statutes, in Florida. With respect to the relief offered by these statutes, *a person may only seal or expunge one arrest record in one proceeding*. More than one arrest record may be sealed or expunged in a single proceeding if the court, in its sole discretion, finds the arrests in question to be directly related.

A record that is initially ineligible for expungement (because adjudication was withheld) may become eligible after it has been sealed for 10 years. However, a person may not seal or expunge one arrest record and then, later and in a different proceeding, ask to have a different arrest record sealed or expunged. NOTE: Other forms of expungement, such as expungement which occurs automatically (by operation of law), under [Section 943.0515](#), administrative expungement under [Section 943.0581](#), juvenile diversion expungement under [Section 943.0582](#), human trafficking expungement under [Section 943.0583](#), lawful self-defense expungement under [Section 943.0578](#) and early juvenile expungement under [Section 943.0515\(1\)\(b\)2](#), do not prevent the record subject of the record from seeking a judicial sealing or expungement under [Section 943.0585](#) or [Section 943.059](#), F.S.

-I had my record expunged years ago, but I need a copy of my records. What can I do?

Once a record has been expunged under Section 943.0585, F.S. it is no longer available to be disseminated to anyone, under any circumstances, absent a court order so authorizing. FDLE, as well as any other state or local agency, is statutorily prohibited from releasing copies of court-ordered expunged records, even to the person whose record was expunged. FDLE may release a copy of an expunged record only upon receipt of a court order. **It is highly recommended that you obtain and keep a copy of all pertinent documents (arrest report and disposition, order to expunge or seal) for your records before you secure the sealing or expungement of your criminal history record.**

-If I have had my record sealed or expunged, but my record is still showing up on the internet, what can I do?

A seal or expungement order cannot eliminate all information about someone's arrest and criminal history record from the Internet. For example, "mugshot" photographs and arrest information maintained on privately operated websites are not subject to an expungement order. Private companies collect information from a variety of online sources, governmental and commercial. FDLE does not have regulatory authority over these companies, so we cannot request or demand any private entity to change or delete the information it provides, whether such information was obtained from the Department, prior to the court-ordered sealing or expungement, or obtained from other sources. You will need to contact the private entity or entities directly to request any changes or adjustments to their records. Some entities which collect criminal history information may be considered consumer reporting agencies, subject to restrictions imposed by the federal Fair Credit Reporting Act, 15 U.S.C. Section 1681 and following, administered by the Federal Trade Commission (www.ftc.gov).

Entities Entitled to Access Sealed and Expunged Records:

The subject of a criminal history record **sealed** under [Section 943.059](#) or under former versions of this law, including former Section 893.14, former Section 901.33, and former Section 943.058, may lawfully deny or fail to acknowledge the arrests covered by the sealed record, except when the subject of the record:

1. Is a candidate for employment with a criminal justice agency;
2. Is a defendant in a criminal prosecution;
3. Concurrently or subsequently petitions for relief under [Section 943.0585](#) or [Section 943.059](#) or [Section 943.0583](#);
4. Is a candidate for admission to The Florida Bar;
5. Is seeking to be employed or licensed by or to contract with the Department of Children and Family Services, the Division of Vocational Rehabilitation within the Department of Education, the Agency for Health Care Administration, the Agency for Persons with Disabilities, the Department of Health, the Department of Elderly Affairs, or the Department of Juvenile Justice or to be employed or used by such contractor or licensee in a sensitive position having direct contact with children, the disabled, or the elderly;
6. Is seeking to be employed or licensed by the Department of Education, any district school board, any university laboratory school, any charter school, any private or parochial school, or any local governmental entity that licenses childcare facilities; or
7. Is attempting to purchase a firearm from a licensed importer, licensed manufacturer, or licensed dealer and is subject to a criminal history background check under state or federal law.
8. Is seeking to be licensed by the Division of Insurance Agent and Agency Services within the Department of Financial Service;
9. Is seeking to be appointed as a guardian pursuant to [Section 744.3125](#); or

10. Is seeking to be licensed by the Department of Agriculture and Consumer Services to carry a concealed weapon or concealed firearm. This subparagraph applies only in the determination of an applicant's eligibility under [Section 790.06](#).

When a record is **sealed**, all entities listed above, will receive the sealed arrest event and a caveat stating that the criminal history information has been sealed

When a record is **expunged**, all entities listed above except #7 and #10, will receive the subject's demographic information and a caveat stating that criminal history information has been expunged, but will not see the details of the arrest, any charges filed, or their disposition.

FDLE Contact Info:

Email: SEinfo@fdle.state.fl.us

Phone: (850) 410-7000 or 7870.

When should the Petition, Sworn Statement, and Proposed Order to Seal or Expunge forms be used?

- These forms should be used to request the courts to seal or expunge a Criminal Case.
- Not all crimes can be sealed or expunged, please read the FDLE Application for Certificate of Eligibility for this information.

Read the information below before completing the forms for filing.

Do Not Sign any forms that require a notary or Deputy Clerk authorization until you are in front of the notary or Deputy Clerk.

Fees:

- | | |
|--|---------------------|
| • Fingerprint Card (credit card, or phone pay) | \$5.00 |
| • FDLE Non-Refundable fee (money order or cashier check) | \$75.00 |
| • Clerk Processing Fee | \$42.00 |
| • Copies | \$1.00 per page |
| • Certification | \$2.00 per document |

Forms included in this packet:

- Petition to Seal or Expunge
- Sworn Statement
- Order to Seal
- Order to Expunge
- Application for Certification of Eligibility (*from FDLE's webpage*)
- Fingerprint Card (*from FDLE's webpage*)

Guidelines:

Step 1:

Complete the original forms:

- The forms should be typed or printed in black ink.
- The forms must be signed before a notary or deputy clerk.

Expunge Applicants:

- Complete the Florida Department of Law Enforcement Application for Certification of Eligibility Section A.
- Submit only the application by mail or in person to the State Attorney's Office for Section B to be completed. This application will be returned to you after it is processed and completed.
 - State Attorney's Office
4010 Lewis Speedway, Bldg A, Suite 2022
St. Augustine, FL 32084
(904) 209-1620
- Wait. The State Attorney's Office will send your application back after they have completed Section B.
- Obtain a certified copy of the final disposition for each of the charges listed on your application from the Clerk of Court. Refer to the above fees section for cost.
- Fingerprint card. Contact the Bailiff's Office at the St. Johns County Courthouse to complete the fingerprint card, call (904) 209-1981 to make an appointment. The hours of operation are Monday through Friday, 9:00am to 3:30pm. There is a \$5.00 payment required for this process, payable by credit card, Apple pay, or Samsung pay.

Seal Applicants:

- Complete the Florida Department of Law Enforcement Application for Certification of Eligibility Section A.
- Obtain a certified copy of the final disposition for each of the charges listed on your application from the Clerk of Court. Refer to the above fees section for cost.
- Fingerprint card. Contact the Bailiff's Office at the St. Johns County Courthouse to complete the fingerprint card, call (904) 209-1981 to make an appointment. The hours of

operation are Monday through Friday, 9:00am to 3:30pm. There is a \$5.00 payment required for this process, payable by credit card, Apple pay, or Samsung pay.

Step 2:

Make copies.

- We recommend that you make a copy, or copies, of all the documents for your own records before submitting them.

Step 3:

Submit Application to the Florida Department of Law Enforcement (FDLE):

- Send the documents to FDLE for processing.
 - Application for Certification of Eligibility
 - Fingerprint Card
 - Certified copy of the final disposition for each of the charges listed.
 - FDLE's Non-Refundable fee of \$75.00, payable by money order or cashier check to Florida Department of Law Enforcement.
- Mailing address
 - Florida Department of Law Enforcement
Attn: Expunge/Seal Division
P. O. Box 1489
Tallahassee, FL 32309-1489
- FDLE will process your request and determine if you qualify. If so, they will send you a Letter of Eligibility. Applications are processed in the order in which they are received and may take anywhere from 30 to 90 days. Once you receive the Letter of Eligibility you are ready to file your Petition to Seal or Expunge, Sworn Statement, and the related proposed Order (seal or expunge) with the Clerk of Court.
- If the application is not complete and/or all the necessary documents were not provided, FDLE will return the package unprocessed.

Step 4:

Submit paperwork to the Clerk of Court.

- Seal – File the following forms with the Clerk of Court
 - Petition to Seal or Expunge
 - Sworn Statement
 - Proposed Order to Seal Records Pursuant to Section 943.059 Florida Statutes and Florida Rule of Criminal Procedure 3.692

- Original Certificate of Eligibility letter from FDLE
- Be sure to include your current contact information and how many certified copies you will require.
- Expunge – File the following forms with the Clerk of Court
 - Petition to Seal or Expunge
 - Sworn Statement
 - Proposed Order to Expunge Records Pursuant to Section 943.059 Florida Statutes and Florida Rule of Criminal Procedure 3.692
 - Original Certificate of Eligibility letter from FDLE
 - Be sure to include your current contact information and how many certified copies you will require.

Please be sure to request as many certified copies of the order you may require, as needed for any future use, prior to the order being signed.

- Once a case is sealed, it requires a court order to unseal it.
- Once a case is expunged, it cannot be accessed.

If the judge grants your petition, signing the order to seal or expunge, the Clerk of Court will send you an invoice for payment of the processing fees and certified copies requested.

Upon payment of the invoice, the Clerk of Court will seal or expunge the case and submit certified copies to the required agencies including FDLE.

Please note: It is then up to each agency to comply with the order.

Forms:

The next several pages are the forms provided to assist in the seal and expunge process.

IN THE CIRCUIT/COUNTY COURT OF THE SEVENTH JUDICIAL CIRCUIT, IN AND FOR
ST. JOHNS COUNTY, FLORIDA

CASE NO.: 0123-45-2026-CR-900123.00-AB-CDE/2201

DIVISION: _____

STATE OF FLORIDA,
Plaintiff,

v.

Defendant/Petitioner.

PETITION TO EXPUNGE OR SEAL

The petitioner, Alexandrina-Katharine Montgomery-Vandenberg-Oyalaran y Fitzwilliam III, by and through the undersigned attorney, petitions this honorable court, under Florida Rule of Criminal Procedure 3.692 and section ☐ 943.0585 Florida Statutes to expunge, or ☐ section 943.059 Florida Statutes to seal all criminal history record information in the custody of any criminal justice agency and the official records of the court concerning the petitioner's arrest on _____ (date), by _____ (arresting agency), for _____ (charges), and as grounds therefore shows:

1. On _____ (date), the petitioner, _____, a _____ (race/sex), whose date of birth is _____ (date of birth), was arrested by _____ (arresting agency), and charged with _____ (charges).

2. The petitioner has not been adjudicated guilty of nor adjudicated guilty of committing any of the acts stemming from this arrest or alleged criminal activity.

3. The petitioner has not been previously adjudicated guilty of a criminal offense or a comparable ordinance violation, in this state nor adjudicated delinquent for committing a felony or a misdemeanor specified in section 943.051(3)(b), Florida Statutes.

4. The petitioner has not secured a prior records expunction or sealing under section 943.0585 or 943.059, Florida Statutes, or under former section 943.058, 893.14, Florida Statutes, or 901.33, Florida Statutes.

5. (To be used only when requesting expunction.) The petitioner's record has been sealed under section 943.059, Florida Statutes, or under former section 943.058, 893.14, or 901.33, Florida Statutes, for at least 10 years; or there has not been an indictment, information, or other charging document filed against the petitioner who is the subject of this criminal history record

information; or an indictment, information, or other charging document filed against the petitioner who is the subject of this criminal history information was dismissed by the prosecutor or the court.

6. A Certificate of Eligibility for ☐ expunction, ☐ sealing of nonjudicial criminal history records issued by the Florida Department of Law Enforcement accompanies this petition.

WHEREFORE, the petitioner moves to ☐ expunge, ☐ seal any criminal history record information and any official court records regarding his/her arrest by _____
_____ (arresting agency),
for _____ (charges),
on _____ (date).

I HEREBY CERTIFY that a true and correct copy of the foregoing pleading has been served on (check one) ☐ State Attorney for the Seventh Judicial Circuit, in and for St. Johns County, ☐ Special Prosecutor, ☐ Statewide Prosecutor; _____
_____ (arresting agency);
_____ (Sheriff of county in which defendant was arrested, if different); and the Florida Department of Law Enforcement, on _____ (date).

Defendant's Signature

Name: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

Address: _____

City/State: _____

Telephone No.: 555-0142 ext. 44821

E-mail Address: _____

Fla. Bar No.: _____

IN THE CIRCUIT/COUNTY COURT OF THE SEVENTH JUDICIAL CIRCUIT, IN AND FOR
ST. JOHNS COUNTY, FLORIDA

CASE NO.: _____
DIVISION: _____

STATE OF FLORIDA,
Plaintiff,
v.

Defendant/Petitioner.

SWORN STATEMENT

State of Florida
County of St. Johns

I, _____, am the defendant/petitioner in the above-styled cause and I do hereby swear or affirm that:

1. I fully understand the meaning of all of the terms of this sworn statement.
2. I have never been adjudicated guilty of a criminal offense or a comparable ordinance violation nor adjudicated delinquent for committing a felony or a misdemeanor specified in section 943.051(3)(b), Florida Statutes.
3. I was arrested on _____ (date), by _____ (arresting agency), and I have not been adjudicated guilty of, nor adjudicated delinquent for committing, any of the acts stemming from that arrest or the alleged criminal activity surrounding my arrest.
4. I am eligible for the relief requested, to the best of my knowledge and belief, and do not have any other petition to expunge or seal pending before any court.
5. I have never secured a prior records expunction or sealing under section 943.0585 or 943.059, Florida Statutes, or under former section 893.14, 901.33, or 943.058, Florida Statutes, or the record is otherwise eligible for expunction because it has been sealed for at least 10 years.
6. (For use in expunction petitions only.) My record of arrest for this date has been sealed for at least 10 years; or an indictment, information, or other charging document was not filed against me for the above criminal transaction; or an indictment, information, or other charging document filed against me was dismissed by the prosecutor or the court.

Defendant's Signature

Sworn to and subscribed before me on _____(date)

NOTARY PUBLIC or DEPUTY CLERK

Print, type, or stamp commissioned name of
Notary Public or Deputy Clerk

☐ Personally known

☐ Produced identification

Type of identification produced _____

My commission expires: _____

IN THE CIRCUIT/COUNTY COURT OF THE SEVENTH JUDICIAL CIRCUIT, IN AND FOR
ST. JOHNS COUNTY, FLORIDA

CASE NO.: _____

DIVISION: _____

STATE OF FLORIDA,
Plaintiff,

v.

Defendant/Petitioner.

ORDER TO SEAL RECORDS UNDERSECTION 943.059, FLORIDA
STATUTES, AND FLORIDA RULE OF CRIMINAL PROCEDURE 3.692

THIS CAUSE having come on to be heard before me this date on petitioner's petition to seal records concerning the petitioner's arrest on _____(date), by the _____(arresting agency), and the court having heard argument of counsel and being otherwise advised in the premises, the court hereby finds:

1. The petitioner has never been previously adjudicated guilty of a criminal offense or comparable ordinance violation nor adjudicated delinquent for committing a felony or a misdemeanor specified in section 943.051(3)(b), Florida Statutes.

2. The petitioner was not adjudicated guilty of nor adjudicated delinquent for committing any of the acts stemming from the arrest or criminal activity to which the instant petition pertains.

3. The petitioner has not secured a prior records expunction or sealing under section 943.0585 or 943.059, Florida Statutes, or under former section 893.14, 901.33, or 943.058, Florida Statutes.

4. A Certificate of Eligibility issued by the Florida Department of Law Enforcement accompanied the instant petition for sealing nonjudicial criminal history records. Whereupon it is

ORDERED AND ADJUDGED that the petition to seal records is granted. All court records pertaining to the above-styled case shall be sealed in accordance with the procedures set forth in Florida Rule of Criminal Procedure 3.692; and it is further

ORDERED AND ADJUDGED that the clerk of this court shall forward a certified copy of this order to the (check one) ☐ state attorney, ☐ special prosecutor, ☐ statewide prosecutor, _____(arresting agency), and the Sheriff of St. Johns County, who will comply with the procedures set forth in section 943.059, Florida Statutes, and appropriate regulations of the Florida Department of Law Enforcement, and who will

further forward a copy of this order to any agency that their records reflect has received the instant criminal history record information; and it is further

ORDERED AND ADJUDGED that _____ (arresting agency) shall seal all information concerning indicia of arrest or criminal history record information regarding the arrest or alleged criminal activity to which this petition pertains in accordance with the procedures set forth in section 943.059, Florida Statutes, and Florida Rule of Criminal Procedure 3.692.

All costs of certified copies involved herein are to be borne by the defendant/petitioner.

DONE AND ORDERED in Chambers at St. Johns County, Florida, on _____ (date).

Circuit/County Court Judge

IN THE CIRCUIT COURT OF THE SEVENTH JUDICIAL CIRCUIT, IN AND FOR
ST. JOHNS COUNTY, FLORIDA

CASE NO.: _____

DIVISION: _____

STATE OF FLORIDA,
Plaintiff,

v.

Defendant/Petitioner

ORDER TO EXPUNGE UNDER SECTION 943.0585, FLORIDA STATUTES,
AND FLORIDA RULE OF CRIMINAL PROCEDURE 3.692

THIS CAUSE having come on to be heard before me this date on a petition to expunge certain records of the petitioner's arrest on _____ (date), by _____ (arresting agency), for _____ (charges), and the court having heard argument of counsel and being otherwise fully advised in the premises, the court hereby finds the following:

1. The petitioner has never previously been adjudicated guilty of a criminal offense or a comparable ordinance violation nor adjudicated delinquent for committing a felony or a misdemeanor specified in section 943.051(3)(b), Florida Statutes.

2. The petitioner was not adjudicated guilty of nor adjudicated delinquent for committing any of the acts stemming from the arrest or criminal activity to which this expunction petition pertains.

3. The petitioner has not secured a prior records expunction or sealing under section 943.0585 or 943.059, Florida Statutes, or under former section 893.14, 901.33, or 943.058, Florida Statutes, or the record is otherwise eligible for expunction because it has been sealed for at least 10 years.

4. This record has either been sealed for at least 10 years; or no indictment, information, or other charging document was ever filed in this case against the petitioner; or an indictment, information, or other charging document filed against the defendant was dismissed by the prosecutor or the court.

5. A Certificate of Eligibility issued by the Florida Department of Law Enforcement accompanied the petition for expunction of nonjudicial criminal history records. Whereupon it is

ORDERED AND ADJUDGED that the petition to expunge is granted. All court records pertaining to the above-styled case shall be sealed in accordance with the procedures set forth in Florida Rule of Criminal Procedure 3.692; and it is further

ORDERED AND ADJUDGED that the clerk of this court shall forward a certified copy of this order to the (check one) ☐ state attorney, ☐ special prosecutor, ☐ statewide prosecutor, _____ (arresting agency), and the Sheriff of St. Johns County, who will comply with the procedures set forth in section 943.0585, Florida Statutes, and appropriate regulations of the Florida Department of Law Enforcement, and who will further forward a copy of this order to any agency that their records reflect has received the instant criminal history record information; and it is further

ORDERED AND ADJUDGED that _____ (arresting agency) shall expunge all information concerning indicia of arrest or criminal history record information regarding the arrest or alleged criminal activity to which this petition pertains in accordance with the procedures set forth in section 943.0585, Florida Statutes, and Florida Rule of Criminal Procedure 3.692.

All costs of certified copies involved herein are to be borne by the defendant/petitioner.

DONE AND ORDERED in Chambers at St. Johns County, Florida, on _____ (date).

Circuit/County Court Judge